

HOUSE BILL 2331

By Butler

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 3; Title 8, Chapter 27; Title 56 and Title
71, relative to pharmacy benefits managers.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 4-3-1013, is amended by adding the following as a new subsection:

(g) Notwithstanding subsection (a), the bureau of TennCare shall not contract with a pharmacy benefits manager if the pharmacy benefits manager has been disciplined by the department of finance and administration or the department of commerce and insurance.

SECTION 2. Tennessee Code Annotated, Title 8, Chapter 27, Part 1, is amended by adding the following as a new section:

A committee shall not contract with a pharmacy benefits manager if the pharmacy benefits manager has been disciplined by the department of finance and administration or the department of commerce and insurance.

SECTION 3. Tennessee Code Annotated, Title 56, Chapter 7, Part 31, is amended by adding the following as a new section:

A pharmacy benefits manager shall not contract for a service with a department, agency, or entity of this state if the pharmacy benefits manager has been disciplined by the department of finance and administration or the department of commerce and insurance.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it, and applies to contracts entered into, amended, or renewed on or after that date.